

[1 EDW. 8. &
1 GEO. 6.]

*East Anglesey Gas
Act, 1937.*

[Ch. xxxix.]



CHAPTER xxxix.

An Act to incorporate and confer powers on the East Anglesey Gas Company to provide for the transfer to that company of the gas undertaking of the mayor aldermen and burgesses of the borough of Beaumaris for the amalgamation of the said undertaking with the undertaking of the Amlwch Gas Company Limited and for the vesting of the amalgamated undertaking in the Company and for other purposes. A.D. 1937.

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East Anglesey Gas Company to provide for the transfer to that company of the gas undertaking of the mayor aldermen and burgesses of the borough of Beaumaris for the amalgamation of the said undertaking with the undertaking of the Amlwch Gas Company Limited and for the vesting of the amalgamated undertaking in the Company and for other purposes.

[10th June 1937.]

WHEREAS the mayor aldermen and burgesses of the borough of Beaumaris in the county of Anglesey (in this Act respectively referred to as "the corporation" and "the borough") were under the Public Health Act 1875 empowered to supply gas in the borough as then constituted and under the powers of the Beaumaris Gas Order 1922 (in this Act referred to as "the Order of 1922") the corporation were authorised upon certain lands scheduled to such Order to maintain alter improve and renew the then existing gas and other works of the corporation and to erect maintain alter improve and renew works for the manufacture and storage of gas and residual products and to supply gas in the parishes of Beaumaris Llanfaes and Llaniestyn Urban which parishes constitute the borough: 38 & 39 Vict. c. 55.

And whereas by the agreement set forth in the First Schedule to this Act the corporation have agreed

A.D. 1937. — to sell their gas undertaking (hereinafter referred to as “the Beaumaris undertaking”) to William Albert Scott (in the said agreement and hereinafter referred to as “the purchaser”) and the purchaser has agreed to purchase the same upon the terms in the said agreement set forth and it is expedient that the sale and purchase of the Beaumaris undertaking upon the terms of the said agreement as varied by this Act should be sanctioned and confirmed as by this Act provided :

8 Edw. 7.
c. 69.
3 & 4 Geo. 5.
c. 25.

And whereas the Amlwch Gas Company Limited (in this Act referred to as “the Amlwch Company”) were on the seventeenth day of February one thousand nine hundred and fourteen incorporated under the Companies Acts 1908 and 1913 as a company limited by shares for the purposes (inter alia) of acquiring as a going concern and carrying on the business of the former gas light and coke undertaking and works situate at Amlwch in the said county of Anglesey and of manufacturing and supplying gas in the town and district of Amlwch and elsewhere in the said county or any adjoining districts or counties :

And whereas the nominal capital of the Amlwch Company consists of ten thousand pounds and the Amlwch Company have created and issued the whole of that amount divided into nine thousand seven hundred and fifty ordinary shares and two hundred and fifty preference shares of one pound each :

And whereas it is expedient that the Beaumaris undertaking be transferred to a company (hereinafter called “the Company”) and that the undertaking so transferred and the undertaking of the Amlwch Company be amalgamated the Amlwch Company dissolved and the amalgamated undertaking vested in the Company and that the persons hereinafter referred to and others be incorporated into the Company with statutory authority for the purpose of carrying on the amalgamated undertaking and that the Company be authorised to supply gas within the limits defined by this Act and to exercise the other powers conferred by this Act :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

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May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PART I.

PRELIMINARY.

1. This Act may be cited as the East Anglesey Gas Act 1937.

2. This Act is divided into Parts as follows:—

Act divided
into Parts.

Part I.—Preliminary.

Part II.—Incorporation of Company and amalgamation and transfer of undertakings.

Part III.—Capital &c.

Part IV.—Meetings directors &c.

Part V.—Gasworks and lands.

Part VI.—Supply.

Part VII.—Heat unit basis for gas supply.

Part VIII.—Price of gas and application of profits.

Part IX.—Reserve and other funds.

Part X.—Miscellaneous.

3. The following Acts and parts of Acts so far as the same are applicable to the purposes and are not inconsistent with or varied by the provisions of this Act are incorporated with and form part of this Act (namely):—

Incorporation of
general
Acts.

The Companies Clauses Consolidation Act 1845 as amended by subsequent Acts (except the provisions relating to the conversion of the borrowed money into capital);

8 & 9 Vict.
c. 16.

Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

26 & 27 Vict.
c. 118.

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PART I.
—cont.

Provided that section 22 of the said Companies Clauses Act 1863 shall be read as if the words “and to the same amount as” were omitted therefrom;

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking);

10 & 11 Vict.
c. 15.

The Gasworks Clauses Act 1847 as amended by subsequent Acts (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit);

34 & 35 Vict.
c. 41.

The Gasworks Clauses Act 1871 as amended and extended by subsequent Acts (except section 8 thereof).

Interpreta-
tion.

4. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings And—

“The Company” means the East Anglesey Gas Company incorporated by this Act;

“The Amlwch Company” means the Amlwch Gas Company Limited;

“The corporation” means the mayor aldermen and burgesses of the borough;

“The borough” means the borough of Beaumaris;

“The purchaser” means William Albert Scott;

“The appointed day” means the first day of July one thousand nine hundred and thirty-seven;

“The limits of supply” means the limits within which the Company are for the time being authorised to supply gas;

“The scheduled agreement” means the agreement set forth in the First Schedule to this Act;

“The Beaumaris undertaking” means the gas undertaking of the corporation as defined in the scheduled agreement;

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“The Amlwch undertaking” means and includes subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the appointed day are vested in the Amlwch Company or any person in trust for them or to which the Amlwch Company are in anywise entitled and all pipes plant machinery meters stoves cookers fixtures fittings apparatus stock in hand stores matters and things which have been purchased or provided by and are immediately before the appointed day the property of the Amlwch Company and all moneys securities credits effects and other property whatsoever and wheresoever and whether real or personal including things in action which immediately before the appointed day belong to the Amlwch Company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the Amlwch Company and immediately before the appointed day in force;

“The undertaking” means the undertaking of the Company as from time to time authorised;

“Therm” means one hundred thousand British thermal units;

“The declared calorific value” means the calorific value of the gas which the Company are for the time being bound to supply under this Act or under any declaration in force under the provisions of this Act;

“The gas referees” means the gas referees appointed by the Board of Trade under the Act of 1920;

“The Act of 1920” means the Gas Regulation Act 1920;

“The Act of 1929” means the Gas Undertakings Act 1929;

“The Act of 1934” means the Gas Undertakings Act 1934;

“The Order of 1922” means the Beaumaris Gas Order 1922;

“Directors” means directors of the Company.

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PART I.
—cont.

10 & 11
Geo. 5. c. 28.

19 & 20
Geo. 5. c. 24.

24 & 25
Geo. 5. c. 28.

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PART II.

INCORPORATION OF COMPANY AND AMALGAMATION AND
TRANSFER OF UNDERTAKINGS.Dissolution
of Amlwch
Company
and incor-
poration of
Company.

5. As from the appointed day the Amlwch Company shall be dissolved and the purchaser Albert Ernest Scott Henry Thomas Manwaring and the several persons who immediately before the appointed day were members of the Amlwch Company and all other persons who have subscribed to or shall become proprietors in the undertaking and their executors administrators successors and assigns respectively shall be and are hereby united into a company for the purposes hereinafter mentioned and shall be and are hereby incorporated by the name of "the East Anglesey Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to take hold and dispose of lands and other property for the purposes of this Act and of the undertaking.

General
purposes of
Company.

6. The Company shall be established for the purposes of carrying on the undertaking and of manufacturing purchasing storing and supplying gas for lighting heating cooking motive power and other purposes and may produce purchase store sell dispose of and deal in gas coke patent fuel tar pitch asphaltum ammoniacal liquor sulphate of ammonia and all other products refuse or residuum arising remaining resulting or obtained from or produced by the manufacture of gas or the materials acquired for and used in such manufacture and may manufacture and sell such articles as can be produced from or by means of the several matters and things aforesaid or any of them and may purchase and store coal oil and other materials employed in the manufacture of gas and generally may carry on any business usually carried on by a gas company or which is or may become incidental thereto and may carry the powers of this Act into execution.

Confirma-
tion of
scheduled
agreement.

7. The scheduled agreement is hereby sanctioned and confirmed except that the Company shall take thereunder in lieu of the purchaser.

Receipt for
considera-
tion money.

8. The receipt in writing of the town clerk or borough treasurer of Beaumaris for any sum of money paid as the consideration for the transfer of the Beaumaris

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undertaking or for the conveyance by the corporation to the Company of the lands described in Part II of the schedule to the scheduled agreement shall effectually discharge the purchaser and the Company from the sum which in such receipt shall be acknowledged to have been received and from being answerable or accountable for the loss misapplication or non-application thereof.

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PART II.
—cont.

9. The balance of the consideration moneys received by the corporation in accordance with the provisions of the scheduled agreement (after payment thereout of the proportion payable by the corporation of the costs referred to in the section of this Act of which the marginal note is "Costs of Act") in respect of the transfer to the Company of the Beaumaris undertaking and of the lands described in Part III of the Second Schedule to this Act shall be applied in such manner as the Minister of Health may approve towards the discharge of any debt of the corporation or otherwise for any purpose for which capital money may properly be applied.

Application
of moneys
by corpo-
ration.

10. Subject to the provisions of this Act on and from the appointed day the Beaumaris undertaking (freed and discharged from all mortgages charges and other securities granted by the corporation and the principal moneys and interest up to the first day of January one thousand nine hundred and thirty-seven thereby secured) and the Amlwch undertaking shall be by virtue of this Act amalgamated and the undertakings so amalgamated shall constitute one undertaking and the undertaking so amalgamated and the lands described in Part III of the Second Schedule to this Act shall be by virtue of this Act transferred to and vested in the Company.

Amalgama-
tion of un-
dertakings
and vesting
in Company.

11.—(1) As from the appointed day the Order of 1922 shall be repealed.

Repeal of
Order of
1922.

(2) Notwithstanding anything in this section section 29 (Mode of payment off of money borrowed) and section 33 (Sinking fund) of the Order of 1922 shall continue to have effect in respect of the corporation until all moneys borrowed by the corporation under the powers granted by the said Order have been repaid.

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PART II.
—cont.Avoidance
of memo-
randum and
articles of
association
of Amlwch
Company.

12. Subject to the provisions of this Act as from the appointed day the memorandum and articles of association of the Amlwch Company shall as to any prospective operation be wholly void and the Company and the shareholders or stockholders thereof shall be exempted from all the provisions restrictions and requirements of any Act which applied to the Amlwch Company and the members thereof as such but nothing in this Act contained shall affect the previous operation of the said memorandum and articles or anything done or suffered or any right obligation or liability acquired accrued or incurred thereunder and with respect to all such rights obligations and liabilities the Company and the proprietors thereof and the property of the Company shall to all intents and purposes represent the Amlwch Company and the members thereof as such and the property of the Amlwch Company as the case may be.

Contracts
prior to
appointed
day to be
binding.

13. All purchases sales conveyances grants assurances deeds contracts bonds agreements and other instruments (other than the scheduled agreement) (a) affecting the corporation in respect of the Beaumaris undertaking and in force at the appointed day (save so far as the same relate to any matter or thing not transferred to the Company under this Act) or (b) entered into or made before the appointed day by to or with the Amlwch Company or any trustee or person acting on behalf of the Amlwch Company or by to or with any person to whose rights and liabilities the Amlwch Company have succeeded and in force at the appointed day shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the corporation or the Amlwch Company or the trustee or person acting on behalf of the Amlwch Company as the case may be the Company had been a party thereto.

Actions &c.
not to abate.

14. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against or in favour of (a) the corporation in relation to the Beaumaris undertaking (save so far as the same relates to any matter or thing not transferred to the Company under this Act) or (b) the Amlwch Company or any member thereof in relation

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to the affairs of the Amlwch Company or to which the Amlwch Company or any member thereof in relation to such affairs were parties immediately before the appointed day and any such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the corporation or the Amlwch Company or any member thereof as the case may be if this Act had not been passed the Company and the shareholders or stockholders therein being in reference to the matters aforesaid in all respects substituted for the corporation or the Amlwch Company and their members respectively.

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PART II.
—cont.

15. Every person who (being authorised so to do) before the appointed day entered into any bond covenant contract or engagement on behalf of the Amlwch Company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put to by reason of his having entered into such bond covenant contract or engagement.

Indemnity.

16. Subject to the provisions of this Act from and after the appointed day the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the Amlwch Company immediately before the appointed day were subject and shall indemnify the members directors officers and servants of the Amlwch Company and their respective representatives from all such obligations and liabilities and from all costs charges and expenses in connection therewith.

Company
to satisfy
liabilities
of Amlwch
Company.

17.—(1) All gas rents and sums of money which immediately before the appointed day were due or accruing to the corporation in relation to the Beaumaris undertaking (except any gas rents or sums of money which were due to the corporation before the first day of January one thousand nine hundred and thirty-seven) shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

Recovery of
gas rents &c.
due to cor-
poration.

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PART II.
—cont.

(2) For the purposes of subsections (3) and (4) of section 7 of the Act of 1920 any therms in the form of gas sold by the corporation in the year one thousand nine hundred and thirty-seven shall be deemed to be therms in the form of gas sold by the Company.

Recovery
of gas rents
&c. due to
Amlwch
Company.

18. All gas rents and sums of money which immediately before the appointed day were due or accruing to the Amlwch Company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

As to pay-
ment of
debts owing
before
appointed
day to cor-
poration.

19. All persons who immediately before the appointed day owed any money to the corporation in respect of the Beaumaris undertaking (other than money so owed before the first day of January one thousand nine hundred and thirty-seven) shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the appointed day were due or recoverable from the corporation in respect of the Beaumaris undertaking (other than debts and moneys so due or recoverable before the first day of January one thousand nine hundred and thirty-seven) or for the payment of which the corporation were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

As to pay-
ment of
debts owing
before
appointed
day to
Amlwch
Company.

20. All persons who immediately before the appointed day owed any money to the Amlwch Company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the appointed day were due or recoverable from the Amlwch Company or for the payment of which the Amlwch Company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

Books &c.
continued
evidence.

21. All documents books and writings which if this Act had not been passed would have been receivable in evidence in respect of any matter for or against the corporation in respect of the Beaumaris undertaking

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or for or against the Amlwch Company as the case may be shall be admitted as evidence in all courts and elsewhere in respect of the same or the like matter for or against the Company.

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PART II.
—cont.

22. The Company shall as soon as practicable after the appointed day pay to the persons who immediately before the appointed day held ordinary or preference shares of the Amlwch Company or their successors in title to such shares out of the profits of the Amlwch Company including any fund of the Amlwch Company which on the day immediately before the appointed day was applicable to the payment of dividend dividends (less income tax) at such rates as the Amlwch Company could lawfully have paid thereon out of such funds for the then last preceding six months.

As to
dividends
on shares
of Amlwch
Company.

23. Notwithstanding the avoidance of the memorandum and articles of association of the Amlwch Company all certificates for shares in the Amlwch Company (until cancelled under the provisions of this Act) and all sales transfers and dispositions of any such shares made or executed but not registered before the appointed day shall remain in full force and continue and be available in all respects as if such memorandum and articles of association had not been avoided.

Certificates
&c. to
remain in
force.

24. All officers and servants of the Amlwch Company who shall be in the employ of the Amlwch Company at the appointed day shall as from the appointed day hold under the Company the same respective offices and employments on the same terms and conditions as they held under the Amlwch Company on that day and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to
continue till
removed.

25. Nothing in this Act shall prejudice or affect the exercise or enjoyment by the Amlwch Company of any of their rights powers or privileges during the period between the passing of this Act and the appointed day but all such rights powers and privileges may be exercised and enjoyed by the Amlwch Company during the said period as if this Act had not been passed.

Saving
rights of
Amlwch
Company
until
appointed
day.

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PART III.

CAPITAL &C.

Capital.

26. The capital of the Company shall be forty thousand pounds of which capital twenty thousand pounds is in this Act called "the original capital" and twenty thousand pounds is in this Act called "the additional capital" and may be raised in manner in this Act mentioned.

Allocation
of original
capital.

27.—(1) On the appointed day there shall be created by virtue of this Act and without any further or other authority twenty thousand pounds of ordinary stock which shall constitute the original capital of the Company.

(2) The original capital shall be divided and vested as follows :—

- (a) Forthwith after the appointed day ten thousand pounds of the original capital shall be divided among and vested in the several persons who immediately before the appointed day were registered as holders of the ordinary or preference shares of the Amlwch Company in the proportion of one pound of ordinary stock for each one pound share held by them respectively ;
- (b) Ten thousand pounds of the original capital shall (subject to the provisions of this section) be vested in the purchaser or in his nominee or nominees who shall within one month from the appointed day pay to the corporation the sum of six thousand and thirty-two pounds being the consideration for the transfer to the Company of the Beaumaris undertaking and of the lands described in Part II of the schedule to the scheduled agreement and shall satisfy all the debts liabilities and obligations of the purchaser under clauses 6 and 8 (d) of the scheduled agreement :

Provided that there shall not be allotted to the purchaser or to his nominee or nominees any portion of such capital in excess of the amount of six thousand and thirty-two pounds unless and until the purchaser or his nominee or nominees shall have proved within the period of twelve months from the appointed day to a

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justice of the peace as in this subsection provided that the purchaser or his nominee or nominees has or have expended in and about the Beaumaris undertaking or such part of the undertaking as immediately before the appointed day formed the Beaumaris undertaking or in the performance of any obligation cast upon the purchaser by the scheduled agreement or by this Act or in the payment of the costs charges and expenses payable by the purchaser of and in connection with the preparation and execution of the scheduled agreement any sum or sums in excess of the said sum of six thousand and thirty-two pounds and then stock in such capital shall be allotted to the purchaser or to his nominee or nominees only to the amount of the sum or sums so expended and the provisions of section 40 of the Companies Clauses Consolidation Act 1845 as to the issuing of a certificate by the justice of the peace shall be deemed to apply accordingly.

(3) All stock vested in accordance with the provisions of subsection (2) of this section shall be deemed to be fully paid up.

(4) The balance (if any) of the original capital remaining unissued at the expiration of the said period of twelve months from the appointed day shall be allotted to the purchaser or to his nominee or nominees for cash to the nominal amount of such capital and the sum so paid in cash to the Company shall be applied by the Company firstly in or towards any improvements extensions or additions to such part of the undertaking as immediately before the appointed day formed the Beaumaris undertaking which in the opinion of the directors shall be immediately necessary and in the payment of the proportion payable by the Company of the costs referred to in the section of this Act of which the marginal note is "Costs of Act" and in the payment of the stamp duty payable by the Company under section 113 of the Stamp Act 1891 as amended by subsequent Acts or wholly or partly in one or other of those modes and in so far as the same shall not be so applied it shall be applied in providing working capital for the undertaking :

Provided that no part of such balance shall be allotted to the purchaser or to his nominee or nominees unless and until he or they shall have proved to a justice

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PART III.
—cont.

54 & 55 Vict.
c. 39.

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PART III.
—cont.

of the peace as in this subsection provided that the sum in cash payable by him or them to the Company in accordance with this subsection has been fully paid and the provisions of section 40 of the Companies Clauses Consolidation Act 1845 as to the issuing of a certificate by the justice of the peace shall be deemed to apply accordingly.

Trustees to
accept
substituted
stock.

28. Trustees executors or administrators and all other holders in any representative or fiduciary capacity of any share or shares in the Amlwch Company are hereby expressly authorised and required to accept any stock vested in or paid to them pursuant to this Act and to hold dispose of or otherwise deal with the same as they might have held disposed of or otherwise dealt with the share or shares in the Amlwch Company for which such stock is substituted and are hereby indemnified in respect of all acts bona fide done by them in pursuance of this Act.

Stock to
be held on
same trusts
&c. as shares
of Amlwch
Company.

29. The ten thousand pounds of ordinary stock referred to in subsection (2) (a) of the section of this Act of which the marginal note is "Allocation of original capital" shall be subject and liable to the same trusts powers provisions declarations agreements charges liens and incumbrances as immediately before the appointed day affected the share or shares for which the same is substituted and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any agreement deed or other instrument or any testamentary disposition made before the appointed day and affecting any such share or shares and every such agreement deed or other instrument or testamentary disposition shall take effect with reference to the whole or a proportionate part as the case may be of the ordinary stock substituted for such share or shares.

Exchange of
certificates
&c.

30. The Company shall call in and cancel the existing certificates of shares in the Amlwch Company and issue in lieu thereof certificates of the stock to which the holders of such shares are by this Act respectively entitled but no holder of any such share shall be entitled to any certificate of proprietorship under this Act until he shall have delivered up to the Company to be cancelled the existing certificate of

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proprietorship of the share or shares in the Amlwch Company issued to him before the appointed day or shall have proved to the reasonable satisfaction of the directors the loss or destruction thereof but if any holder of any such existing share neglect or omit to send or deliver to the Company his existing certificate or certificates for the period of one year after notice in writing sent by post to the address of such holder appearing in the shareholders' address book of the Amlwch Company the Company may retain any dividend declared or made payable upon or in respect of the stock substituted under the provisions of this Act for such share or shares until such existing certificate or certificates be sent or delivered to the Company or be proved to the reasonable satisfaction of the directors to have been lost or destroyed and an indemnity be given to the satisfaction of the directors against any claim in respect of such lost or destroyed certificate or certificates or of the share or shares represented thereby.

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PART III.
—cont.

31. The Company may from time to time raise the additional capital by the creation and issue at their option of additional ordinary shares or stock or preference shares or stock or wholly or partially by one or more of those modes but no such shares or stock shall vest in the person accepting the same until the full price of such shares or stock including any premium obtained upon the issue thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this section any greater nominal amount of capital than shall be sufficient to produce (including any premium which may be obtained on the issue thereof and after allowing for any discount on such issue) the sum of twenty thousand pounds.

Power to
raise
additional
capital.

32.—(1) Subject to the provisions of the Act of 1934 all additional ordinary or preference shares or stock hereafter issued by the Company shall be issued in accordance with the provisions of this section.

New shares
or stock to
be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the directors shall from time to time determine :

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PART III.
—cont.

Provided as follows :—

- (a) Notice of the intended sale shall be given in writing to the town clerk of Beaumaris and to the clerk to the council of every urban and rural district wholly or partly within the limits of supply and to the secretary of the London Stock Exchange at least fourteen days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply;
 - (b) A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;
 - (c) In the case of a sale by auction no lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds and a bid (other than a first bid) shall not be recognised unless it be in advance of the last preceding bid;
 - (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum except that the offer by tender of any holder of capital of the Company may be accepted in preference to the offer of the same sum by any person not being such a holder and preference may in like manner be given to the offer of any employee of the Company or consumer of gas supplied by the Company; and
 - (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.
- (3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of capital of the Company in accordance with the provisions of sections 18 to 20 of the

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Companies Clauses Act 1863 and to the employees of the Company and to the consumers of gas supplied by the Company in such proportions as the directors may think fit or to one or more of those classes of persons only :

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PART III.
—cont.

Provided that in the case of an offer to holders of capital if the aggregate amount of any class of shares or stock applied for shall exceed the aggregate amount thereof so offered the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold may be disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of each class of shares or stock sold the total amount obtained as premium (if any) or allowed as discount in each case and the highest and lowest prices obtained for each class of the respective shares or stock.

33. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock issued under or by virtue of the powers conferred by this Act to which a preferential dividend is assigned.

Votes in
respect of
preference
capital.

34. All ordinary and preference shares or stock created by the Company under this Act shall be part of the general capital of the Company and save as is otherwise provided by this Act the holders thereof respectively shall be entitled to the like rights of voting (if any) and any other rights qualifications and privileges in proportion to the amount of their shares or stock and be subject to the like provisions and liabilities as the holders of other shares or stock of the Company of the same class and description.

New shares
or stock to
be part of
general
capital.

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PART III.
—*cont.*Power to
borrow.

35.—(1) The Company may without further or other authority borrow on mortgage of the undertaking in respect of the original capital any sum or sums not exceeding in the whole the sum of ten thousand pounds (including premiums and allowing for discounts).

(2) The Company may also subject to the provisions of this Act borrow on mortgage of the undertaking in respect of the additional capital any sum or sums not exceeding in the whole one-half of that capital (including premiums) which at the time of borrowing has been raised under the powers of this Act but no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock in respect of which it is proposed to borrow together with the premium (if any) realised on the sale thereof has been fully paid up.

Debenture
stock.

36. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 as amended (in its application to the Company) by this Act but notwithstanding anything therein contained the interest of all debenture stock and mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall subject as is mentioned in the section of this Act of which the marginal note is “Priority of mortgages over other debts” have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Debenture
stock bonds
and mort-
gages to rank
pari passu.

37. The principal moneys secured by all mortgages and debenture stock created and issued or granted by the Company shall rank *pari passu* and without any preference among such principal moneys by reason of priority in the dates of such mortgages and debenture stock or of the Acts of Parliament or resolutions by which the same were authorised.

[1 EDW. 8. &
1 GEO. 6.]

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38. All moneys raised by the Company on mortgage or by the creation and issue of debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act Provided always that this priority shall not affect any claim against the Company or their property in respect of any rent-charge granted by the Amlwch Company or to be granted by the Company in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to or vested in the Company which is entitled to rank in priority to or pari passu with the interest on their mortgages or debenture stock.

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PART III.
—cont.

Priority of
mortgages
over other
debts.

39. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Appoint-
ment of
receiver.

40. All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application
of moneys.

41.—(1) Any stock or debenture stock of the Company may be issued and be held in amounts of one pound or any multiple of one pound and not otherwise and the Company shall not be under any obligation to register a transfer of any such stock or debenture stock which would reduce the holding of stock or debenture stock of that class of the transferor below or make the holding of stock or debenture stock of that class of the transferee less than one pound or a multiple of one pound.

Minimum
amounts of
holdings of
stock and
debenture
stock.

(2) Notice of this enactment so far as applicable shall be stated in all certificates of ordinary stock

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preference stock or debenture stock of the Company as the case may be.

PART III.

—cont.

Company
not bound
to regard
trusts.

42. The Company shall not be bound to see to the execution of any trusts whether express implied or constructive to which any stock or debenture stock may be subject and the provisions of section 20 of the Companies Clauses Consolidation Act 1845 shall mutatis mutandis extend and apply to any stock or debenture stock of the Company as if the same were shares in the capital of the Company.

PART IV.

MEETINGS DIRECTORS &C.

Ordinary
meetings.

43. The first ordinary meeting of the Company shall be held within six months after the appointed day and all subsequent ordinary meetings of the Company shall be held yearly in the months of September or October in every year at the Company's principal office or in such other month or at such other place as shall be from time to time appointed for that purpose by an order of the directors.

Quorum of
general
meetings.

44. The quorum of general meetings (whether ordinary or extraordinary) of the Company shall be three shareholders or stockholders (of whom at least one shall be a director) present in person or by proxy and holding in the aggregate not less than one thousand pounds of ordinary shares or stock.

Voting
rights.

45. At all general meetings of the Company (whether ordinary or extraordinary) every holder of ordinary shares or stock and every holder of preference shares or stock to which voting rights are attached by the resolution creating the same shall on a show of hands be entitled to one vote and on a poll to one vote in respect of each one pound in the nominal value of the shares or stock held by him.

As to
appoint-
ment of
proxies.

46. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 the attorney of any shareholder or stockholder duly authorised in writing may appoint a proxy to vote for and on behalf of the shareholder or stockholder and for that purpose may execute on behalf of the shareholder or stock-

[1 EDW. 8. &
1 GEO. 6.]

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holder the necessary form of proxy Provided that the instrument appointing the attorney or in the case of an instrument deposited in the Central Office of the Supreme Court of Judicature an office copy thereof shall be transmitted to the secretary of the Company at the same time as the instrument appointing the proxy.

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PART IV.
—cont.

47. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares or stock to which voting rights are attached any one of those persons may vote at any meeting of the Company either personally or by proxy in respect of the shares or stock as if he were solely entitled thereto but if more than one of the joint holders be present personally or by proxy at any meeting of the Company that one of the said persons so present whose name stands first on the register in respect of the shares or stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any shares or stock stand shall for the purposes of this section be deemed joint holders thereof.

Votes of
joint
holders.

48.—(1) The number of directors shall be three but the Company may vary the number provided that the number be not at any time more than five nor less than three.

As to
directors.

(2) The continuing directors may act notwithstanding any vacancy in the number of directors but so that if at any time the number of directors of the Company holding office shall be less than the minimum number prescribed by this Act the directors shall not except for the purpose of filling vacancies and allotting shares or stock to any proposed director or directors act so long as the number is below such minimum.

(3) The quorum of a meeting of directors shall be two.

(4) The qualification of a director shall be the holding of ordinary shares or stock of the Company to the nominal amount of not less than one hundred pounds Provided that a person who is not a holder of ordinary shares or stock of the Company or of a sufficient amount of such shares or stock to qualify

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PART IV.
—cont.

him as a director may be elected and act as a director but that if at the expiration of a period of six months from the date of his election he do not hold ordinary shares or stock of the Company to the amount prescribed by this subsection he shall upon and as from such expiration cease to be or act as a director and thereupon a vacancy amongst the directors shall be deemed to have arisen within the meaning of section 89 of the Companies Clauses Consolidation Act 1845.

First
directors.

49. William Albert Scott Albert Ernest Scott and Henry Thomas Manwaring shall be the first directors of the Company and shall continue in office until the first ordinary meeting of the Company.

Election of
directors.

50. Subject to the provisions of this Act at the first ordinary meeting of the Company one of the directors appointed by this Act shall retire from office and the shareholders or stockholders present in person or by proxy may either re-elect the director so retiring (if he continue qualified) or may elect a new director to supply the place of the director not so re-elected and at the ordinary meeting to be held in every year after the first ordinary meeting the shareholders or stockholders present in person or by proxy shall (subject to the power hereinbefore contained of varying the number of directors) elect a person or persons to supply the place or places of the director or directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the person or persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be a director or directors until another or others be duly elected in his or their stead.

Directors
holding
office under
or contract-
ing with
Company.

51.—(1) Notwithstanding anything in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding any office or place of trust or profit under the Company or by reason of his being interested in any contract with the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting any such office or place of trust or profit or becoming interested in any such contract Provided that in the case of his being or becoming interested in any contract with the Company whether

[1 EDW. 8. &
1 GEO. 6.]

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such interest shall arise before or after his appointment as a director the nature of his interest in the contract shall be disclosed by him at the meeting of the directors at which the contract is determined on if his interest then exist and if he be then a director or in any other case at the first meeting of the directors after the acquisition of his interest or after his appointment and that no director shall as a director vote in respect of any such contract and that if he do so vote his vote shall not be counted but this prohibition shall not apply to any contract by or on behalf of the Company to give to the directors or any of them any security by way of indemnity.

(2) For the purposes of this section a general notice given to the directors by one of them to the effect that he is a member of a specified company or firm and is to be regarded as interested in any contract which may after the date of the notice be made with that company or firm shall be deemed to be a sufficient declaration of interest in relation to any contract so made.

52.—(1) Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director at any meeting of the Company in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Company or left at the principal office of the Company fourteen days at least before the day of election.

Notice of
candidature
for office of
director.

(2) For the purposes of this section the director retiring from office at the first meeting of the Company pursuant to the section of this Act of which the marginal note is "Election of directors" shall be deemed to have retired in rotation on the date of that meeting.

53.—(1) The directors may appoint one of their body to be managing director either for a fixed term or without any limitation as to time and may remove or dismiss him from office and appoint another in his place.

As to
appoint-
ment of
managing
director.

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PART IV.
—cont.

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PART IV.
—cont.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he cease to hold the office of director from any other cause he shall ipso facto immediately cease to be managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exercisable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

Auditors.

54.—(1) The prescribed number of auditors shall be one but the number may be increased to two by a resolution of the Company at a general meeting of the Company or the Company may at any time and from time to time appoint any firm of accountants to be the auditors of the Company.

(2) The auditor or auditors or in the case of a firm being so appointed as auditors the members of such firm need not hold shares or stock of the Company.

(3) If and so long as a firm appointed under the provisions of this section be the auditors of the Company the provisions of this Act and of any Act incorporated herewith relating to the prescribed number of auditors shall not apply to the Company.

(4) In the event of the death or resignation of any auditor appointed under this section the directors may appoint an auditor in the place of the auditor so dying or resigning and any auditor so appointed shall hold office until the next ordinary meeting.

PART V.

GASWORKS AND LANDS.

Powers as to
construction
and main-
tenance of
gasworks
&c.

55. Subject to the provisions of this Act the Company may upon the lands described in Parts I and II of the Second Schedule to this Act or such parts thereof as may from time to time be in the possession of the Company maintain and continue the gasworks

[1 EDW. 8. &
1 GEO. 6.]

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of the corporation and of the Amlwch Company respectively and may upon those lands and upon the lands described in Part III of the said schedule erect maintain alter extend improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them or purchased by them under the powers conferred by section 4 of the Act of 1929 and for this purpose the Company may purchase from any source and use such material as is required to work up and convert any such residual products.

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PART V.
—cont.

56. The Company may for the purposes of the undertaking purchase and take (by agreement but not otherwise) and hold any lands and hereditaments which the Company may from time to time require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in Parts I II and III of the Second Schedule to this Act and the Company shall not at any one time hold any greater quantity of land in the whole than ten acres.

Purchase of
lands by
agreement.

57. The Company may purchase or take on lease houses and cottages for any of their employees and offices and showrooms for the purposes of the undertaking and may erect fit up and maintain upon any lands for the time being belonging or leased to the Company any building to be wholly or partly used for the said purposes and may let any part of any such building which shall not for the time being be required for the said purposes.

Dwelling-
houses for
employees
&c.

58. Notwithstanding anything in the Lands Clauses Acts or any other Act to the contrary the Company may sell or otherwise dispose of or may let on lease for such periods as they think fit any lands for the time being belonging to the Company and which may not at the time be required for the purposes of the undertaking and any such sale disposal or lease may be to such

Power to
sell and
lease lands.

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PART V.
—cont.

person for such consideration and subject to such reservations stipulations restrictions and provisions and generally upon such terms and conditions as the Company or the directors may think fit.

Power to
remove and
destroy
refuse.

59.—(1) As part of the consideration for the transfer of the Beaumaris undertaking the Company may from time to time undertake as agents for the corporation the removal of house refuse and the destruction of the same in the destructor which at the date of the passing of this Act exists on part of the lands described in Part I of the Second Schedule to this Act or the disposal thereof at a suitable place to be provided by the corporation or on the said lands such removal and such destruction or disposal to be carried out by the Company from time to time for such periods and on such terms and conditions as may be agreed between the corporation and the Company.

(2) Subject to any such agreement the Company may maintain and from time to time alter extend improve and renew the said destructor.

PART VI.

SUPPLY.

Limits of
supply.

60. The limits within which the Company may supply gas under this Act shall be the borough of Beaumaris the urban district of Amlwch the rural district of Twrcelyn and the parishes of Llangoed Llaniestyn Rural Llanddona Pentraeth Llansadwrn and Llandegfan in the rural district of Aethwy all in the county of Anglesey.

As to streets
forming
boundary
of limits of
supply.

61.—(1) Where the limits of supply are bounded by or abut upon any street or part of a street wholly outside those limits the Company may for the purpose of supplying gas to the owner or occupier of any premises abutting upon that street or part of a street and being within the limits of supply exercise with respect to such street or part of a street outside those limits the like powers of breaking up the same for the purposes of laying maintaining inspecting repairing and renewing pipes as are exerciseable by them with respect to streets within the limits of supply subject nevertheless to the observance of the like conditions to those imposed on an exercise of those powers within the said limits.

[1 EDW. 8. & *East Anglesey Gas* [Ch. xxxix.]
1 GEO. 6.] *Act, 1937.*

(2) Nothing in this section shall entitle or require the Company to supply gas to the owner or occupier of any premises abutting upon any such street and being outside the limits of supply.

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PART VI.
—cont.

(3) In this section the word "street" includes any square court or alley highway lane road thoroughfare or public passage or place.

62. The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on any street laid out but not dedicated to public use supply those premises with gas and for that purpose the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in this Act and as if any highway authority which would be responsible for the maintenance and repair of any street or road if it should become repairable by the inhabitants at large were (in addition to any other persons) persons having the control or management of the street or road :

Power to
lay pipes
in private
streets.

Provided that nothing in this section contained shall apply to any street belonging to and forming the approach to any station or depot of a railway company except with the consent of such railway company but such consent shall not be unreasonably withheld nor shall the Company in carrying out the works authorised by this section unreasonably obstruct or interfere with the convenient access to any such street.

63. The Company may within the limits of supply lay down and repair take up relay or renew mains pipes and culverts for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with the undertaking and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof :

Power to lay
pipes for
ancillary
purposes.

Provided that no such main pipe or culvert shall be laid down in any street without the consent in writing of the persons having the control or management of

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PART VI.
—cont.

the street or being responsible for the repair thereof having been first obtained. Provided also that such consent shall not be unreasonably withheld and that any question as to whether such consent is unreasonably withheld shall be referred to and determined by a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 or of any statutory modification or re-enactment thereof for the time being in force shall apply to any such reference and determination.

Supply of
fittings &c.

64. The Company may purchase and may supply sell and let but shall not manufacture stoves ranges engines dynamos pipes and fittings and apparatus for the automatic supply of and payment for gas and apparatus for lighting heating cooking ventilating or motive power or for any other purpose for which gas may be utilised and may fix repair remove or alter the same (all which things fittings and apparatus are hereinafter referred to as and included in the expression "fittings") and do any work or services in connection therewith and may supply gas for the aforesaid purposes or by the aforesaid means or any of them and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed repaired removed or altered.

Fittings not
to be subject
to distress
&c.

65.—(1) All gas engines stoves ranges dynamos pipes and other fittings let by the Company on hire or belonging to them but being upon premises of which the Company are not in possession shall whether they be or be not fixed or fastened to any part of any premises in or upon which they may be situate or to the soil under any such premises at all times continue to be the property of and be removable by the Company and shall not be subject to distress or to the landlord's remedy for rent of the premises where the same may be nor be taken in execution under any process of a court of law or equity or any proceedings in bankruptcy against the person in whose possession the same may be provided that such fittings have upon them a distinguishing metal plate affixed to a conspicuous part

[1 EDW. 8. &
1 GEO. 6.]

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thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company or any of their predecessors as the actual owners thereof.

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PART VI.
—cont.

(2) For the purposes of this section gas engines stoves ranges dynamos pipes and other fittings disposed of by the Company on the terms of payment by instalments shall until the whole of the instalments have been paid be deemed to be fittings let on hire by the Company.

(3) Nothing in this section shall affect the amount of the assessment for rating of any premises upon which any gas engines stoves ranges dynamos pipes or other fittings are or shall be fixed.

66.—(1) The Company's inspectors or servants shall at all reasonable times have access to and be at liberty to inspect take off remove test repair and replace meters which are the property of the Company and meanwhile to fix substituted meters on the premises such inspection taking off removal testing repairing and replacing to be done at the expense of the Company.

Inspection
and testing
of meters.

(2) The expense of changing and testing such a meter which at the request of a consumer has been tested in manner provided by regulations made by the Board of Trade under the Act of 1920 and found to register erroneously to a degree exceeding the degree permissible under the said regulations shall be borne by the Company but if the meter shall have been found not so to register erroneously such expense shall be borne by the consumer.

67. If any person supplied with gas by the Company improperly use or deal with the same so as to interfere with the efficient supply of gas by the Company to any other person or if any person supplied with gas by the Company wilfully use the same for a purpose other than that specified in the contract under which the same is supplied the Company may if they think fit cease to supply gas to such person.

For preven-
tion of
improper
use of gas.

68. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf

Notice to
discontinue
supply of
gas.

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PART VI.
—*cont.*

Relief from
obligation
to supply.

of the consumer and be left at or sent by post to the office of the Company or delivered by the consumer personally at the office of the Company.

69.—(1) Unless at the date of the demand for any such new or increased supply of gas as is hereinafter referred to the capacity of the distribution works of the Company be in the opinion of an arbitrator appointed as provided in subsection (2) of this section insufficient to meet (with a reasonable margin) the requirements (as existing immediately before that date) of the consumers in the portion of the area of supply for which such works have been provided (so far as such requirements could reasonably have been foreseen) the Company notwithstanding anything contained in any other enactment shall not be obliged to give for any purpose other than lighting or domestic use—

- (a) a new supply of gas for the premises of any person demanding such supply at any time after the appointed day; or
- (b) an increased supply of gas (other than an increased supply necessitated by any reduction of the declared calorific value of the gas);

where the giving of such new or increased supply would render necessary the laying of a new main or the making (as an alternative to the laying of a new main) of any enlargement or alteration of or addition to the distribution works of the Company. Provided that the foregoing provisions of this section shall not apply in any case in which the person demanding the new or increased supply (in this section referred to as the “applicant”) shall enter into a written contract with the Company—

- (i) to receive and pay for a supply of gas of such minimum quantity and for such minimum period as the Company may reasonably require; or
- (ii) to make such payment or payments to the Company (in addition to any payments to be made from time to time for gas supplied to the applicant) as the Company may reasonably require;

(according as the Company may in their discretion determine) in consideration of or by way of contribution

[1 EDW. 8. &
1 GEO. 6.]

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towards the expenses to be incurred by the Company in laying such new main or making such enlargement alteration or addition as aforesaid and shall give such security for the payment of all moneys which may become due under the contract as the Company may reasonably demand.

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PART VI.
—cont.

(2) If any question shall arise under the provisions of this section between the Company and the applicant as to the sufficiency of the distribution works of the Company or as to whether such new or increased supply would necessitate the laying of a new main or the making of any such enlargement alteration or addition as aforesaid or as to the reasonableness of the minimum quantity or period or of the payments (in addition to payments for gas supplied) required by the Company or as to the nature or amount of the security demanded by the Company such question shall be referred to and determined by an arbitrator to be appointed (failing agreement between the Company and the applicant) by the Board of Trade on the application of either party after notice in writing to the other of them and the decision of such arbitrator shall be final and binding. In determining any such question as aforesaid the arbitrator shall have regard to the following among other considerations (that is to say):—

- (a) the total annual quantity of gas required by the applicant the maximum quantity required per hour and the hours of the day during which the Company may be called upon to supply gas to the applicant;
- (b) the capital expenditure which the Company would have to incur in the laying of a new main or the making of any enlargement or alteration or addition to their distribution works as aforesaid in connection with the giving of such new or increased supply; and
- (c) how far such capital expenditure may become unproductive to the Company in the event of the cesser of the new or increased supply.

(3) Subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 or of any statutory modification or re-enactment thereof for the time being in force shall apply to any arbitration under this section.

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PART VI.

—cont.

Charges for
special
readings of
meters.

70. When at the request and for the convenience of any consumer the reading of any meter on any premises takes place at a time other than that of the usual periodical reading the Company may levy and recover such charges as they think fit not exceeding the sum of one shilling for each such special reading.

PART VII.

HEAT UNIT BASIS FOR GAS SUPPLY.

Measure
of therms
supplied.

71. For the purpose of this Act the number of therms supplied by the Company to any consumer shall be ascertained from time to time by multiplying the number of British thermal units comprised in the declared calorific value of the gas by the number of cubic feet thereof supplied to that consumer and dividing the resulting sum by one hundred thousand.

Calorific
value of gas.

72. Until such time as the Company shall become entitled as provided by this Act to supply gas of a different calorific value the declared calorific value of the gas supplied by the Company shall be five hundred British thermal units.

Variation
of calorific
value.

73. If at any time after the appointed day the Company desire to supply gas of a different calorific value from that which they are then supplying the Company shall by advertisement in the London Gazette and by notice in writing to the Board of Trade and to the county council of Anglesey and to the council of each borough or urban district within or partly within the limits of supply and to each consumer of gas supplied by the Company declare their intention to supply at the expiration of three months from the date of such notice or at such later date as may be specified in such notice gas of such different calorific value as may be declared in such advertisement and notice and the calorific value as so declared by the Company shall thereafter be the declared calorific value for the purposes of this Act unless and until varied by subsequent declaration under the provisions of this Act.

Adjust-
ment of
consumers'
appliances.

74. If and so often as the Company shall declare their intention to supply gas of a different calorific value from the calorific value which they are supplying at the date of such declaration the Company shall effect any alteration re-adjustment or replacement of the

[1 EDW. 8. &
1 GEO. 6.]

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burners in consumers' appliances which may be required in consequence of such alteration of calorific value and so that the gas supplied can be burned in such appliance with safety and efficiency except in the case of a consumer who objects to such alteration adjustment or replacement On each such occasion the Company shall carry out such alterations adjustments and replacements as they are by this section required to effect within six months from the date when they commence to effect the same without charge to the consumer.

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PART VII.
—cont.

75. The minimum permissible pressure of gas supplied by the Company shall in any main or in any pipe laid between the main and the meter having an internal diameter of two inches or upwards be such as will balance a column of water not less than two inches in height:

Pressure
of gas.

Provided always that—

- (a) whenever the declared calorific value is less than three hundred and fifty British thermal units the minimum permissible pressure of the gas supplied by the Company in any such main or pipe as aforesaid shall be such as will balance a column of water not less than two and a half inches in height; and
- (b) whenever the declared calorific value is less than three hundred British thermal units the minimum permissible pressure of gas supplied by the Company in any such main or pipe shall be such as will balance a column of water of such height not being less than three inches as shall be prescribed by the gas referees.

76. The following sections or parts of sections of the Act of 1920 as amended by the Act of 1929 and by the Act of 1934 shall apply to the Company as if the provisions of this Part and of Part VIII (Price of gas and application of profits) of this Act were an Order made under section 6 of the Act of 1929 in relation to the Company (namely):—

As to appli-
cation of Act
of 1920.

Subsection (7) of section 1 (Power to substitute new basis of charges);

Subsection (1) of section 2 (Composition and pressure of gas to be supplied);

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PART VII.

—cont.

Section 5 (Power to prescribe tests);

Section 6 (Appeals to chief gas examiner);

Subsections (3) and (4) of section 7 (Remuneration
and expenses of gas referees);Section 9 (Forfeiture for deficient calorific value
&c.).

PART VIII.

PRICE OF GAS AND APPLICATION OF PROFITS.

Standard
price.

77. The standard price in respect of gas supplied by the Company to consumers by meter shall be sixteen pence per therm and that price is in this Act referred to as “the standard price.”

Profits of
Company
limited.

78.—(1) Except as by this Act provided the profits of the Company to be divided amongst the holders of ordinary shares or stock in any year shall not exceed the following rates (which are in this Act referred to as “the standard rates of dividend”) that is to say on the original capital the rate of ten pounds in respect of every one hundred pounds of such stock and on the additional capital the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital.

(2) In respect of every one hundred pounds actually paid up of so much of the additional capital as may be issued as preference capital the rate of dividend shall not exceed six pounds.

Differential
prices.

79.—(1) The prices charged by the Company for gas supplied by them to consumers—

(a) within the urban district of Amlwch may exceed by not more than twopence per therm;

(b) within the remainder of the limits of supply other than the borough may exceed by not more than fourpence per therm;

the price for the time being charged for gas supplied within the borough.

(2) Any sum so charged in excess under the provisions of this section shall not be taken into account for the purposes of the section of this Act of which the marginal note is “Dividends dependent on price of gas.”

[1 EDW. 8. &
1 GEO. 6.]

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PART VIII.

—cont.

80. In case in any year or half-year the funds of the Company applicable to dividend be insufficient to pay the full amount of dividend at the authorised rates on each class of ordinary capital of the Company a proportionate reduction shall be made in the dividend of each class.

Dividends
on different
classes
of ordinary
capital to be
paid propor-
tionately.

81.—(1) The Company may increase or reduce the price charged by them for gas above or below the standard price :

Dividends
dependent
on price of
gas.

Provided that the dividends payable by the Company on the ordinary shares or stock in respect of any year or half-year shall be at rates per centum per annum not exceeding the average of quarterly rates calculated as follows for each of the quarters in that year or half-year (that is to say) :—

(a) The quarterly rates for any quarter during any part of which the price charged by the Company shall have been above the standard price shall be rates per centum per annum less than the standard rates of dividend by five shillings on every one hundred pounds of the original capital and by three shillings and sixpence on every one hundred pounds actually paid up of such of the additional capital as shall have been issued as ordinary capital in respect of each one-fifth of a penny or part thereof per therm by which the highest price charged by the Company in that quarter exceeds the standard price ;

(b) The quarterly rates for any quarter during the whole of which the price charged by the Company shall have been below the standard price shall be rates per centum per annum exceeding the standard rates of dividend by five shillings on every one hundred pounds of the original capital and by three shillings and sixpence on every one hundred pounds actually paid up of such of the additional capital as shall have been issued as ordinary capital in respect of each one-fifth of a penny per therm by which the highest price charged by the Company in that quarter is less than the standard price.

(2) If the authorised rates of dividend in respect of any year or half-year calculated in accordance with

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PART VIII.
—cont.

the foregoing provisions of this section be less than the standard rates of dividend the Company or the directors (as the case may be) may declare and pay dividends at rates in excess of the rates so calculated (but not in excess of the standard rates of dividend) if they also transfer forthwith to the profit and loss (net revenue) account from the reserve fund a sum equal to the amount by which the total dividends paid exceed the total dividends which would but for this subsection be payable.

Application
of excess
profits over
authorised
rates of
dividend.

82. If the clear profits of the Company in any year amount to a larger sum than is sufficient to pay the dividend on preference capital (if any) and the dividends at the authorised rates on the ordinary capital of the Company the excess shall be left at the credit of the profit and loss (net revenue) account and be carried forward to the next following year. Provided that it shall not be lawful for the Company to carry forward at the end of any year at the credit of the said account any sum exceeding the total of the following amounts:—

- (a) The amount required by the Company for paying the dividends on preference capital (if any) and ordinary capital or interest on moneys borrowed for the purposes of the undertaking which the Company are entitled or required to pay but have not paid in respect of that year;
- (b) An amount equal to the total sum which the Company will be lawfully entitled to distribute as dividends on the preference capital (if any) and on the ordinary capital of the Company in respect of the next following year having regard to the price charged by them for gas at the commencement of that year; and
- (c) An amount equal to the total sum which the Company will be required to pay during the next following year as interest on any mortgages or debenture stock.

Provisions
where meter
indices are
read before
or after ap-
pointed day.

83. Notwithstanding anything contained in this Act—

- (a) Where the indices of the meter registering the supply of gas to any consumer are read for the midsummer quarter of the year one thousand

[1 EDW. 8. &
1 GEO. 6.]

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nine hundred and thirty-seven on or before the appointed day all gas supplied to that consumer through such meter after the date of such reading shall for the purposes of this Act be deemed to have been supplied by the Company on or after the appointed day;

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PART VIII.
—cont.

- (b) Where the indices of the meter registering the supply of gas to any consumer are read for the said quarter at any time after the appointed day all gas supplied to that consumer through such meter up to the date of such reading shall for the purposes of this Act be deemed to have been supplied by the corporation or by the Amlwch Company as the case may be before the appointed day.

84.—(1) The directors may on or after the thirty-first day of December in any year without the sanction of a general meeting declare and pay an interim half-yearly dividend out of the funds of the Company applicable to dividend on any class of shares or stock in the capital of the Company on account of the dividend for that year to be declared at the next following annual general meeting but no such interim dividend shall as respects any ordinary shares or stock exceed the rate of dividend on such shares or stock in respect of such half-year as ascertained pursuant to the section of this Act of which the marginal note is “Dividends dependent on price of gas” and no such interim dividend shall as respects any preference shares or stock exceed one-half of the preferential annual rate of dividend assigned to such shares or stock.

Interim
dividends
and annual
accounts.

(2) Section 116 of the Companies Clauses Consolidation Act 1845 shall in its application to the Company be read as if the words “preceding year” were substituted therein for the words “preceding half-year.”

PART IX.

RESERVE AND OTHER FUNDS.

85.—(1) Where in any year or half-year the dividends payable on the ordinary capital shall exceed the standard rates of dividend by reason of the price charged

Reserve
fund.

A.D. 1937.

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PART IX.
—cont.

by the Company for gas in such year or half-year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year or half-year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company and any moneys transferred under subsection (2) of this section may be invested in any investments in which trustees are authorised by law to invest money or in such other manner as shall be authorised by a resolution of the Company and the dividends and interest arising from such investments may also be invested in the same or the like investments in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable—

(a) to the payment of dividends in any year or half-year in which the clear profits of the Company shall be insufficient to enable the Company in such year or half-year to pay the dividends at the authorised rates on the ordinary capital; and

(b) in accordance with subsection (2) of the section of this Act of which the marginal note is "Dividends dependent on price of gas."

(2) Any moneys standing to the credit of the reserve account of the Amlwch Company shall be credited to the reserve fund authorised by this section.

(3) Save as in this Act provided no sums shall in any year or half-year be carried by the Company to any reserve fund.

Special
purposes
fund.

86.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Company as part of the expenditure on revenue account to a fund to be called "the special purposes fund" any sum not exceeding an amount equal to one per centum of the aggregate amount of the paid-up share or stock capital of the Company of any premiums paid in respect thereof and of any sums which have been raised by the Company on mortgage or by the creation and issue of debenture stock and have not been repaid.

[1 EDW. 8. &
1 GEO. 6.]

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(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

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PART IX.
—cont.

(a) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) Subject to the provisions of subsection (4) of section 3 of the Act of 1929 the maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the aggregate amount aforesaid.

(4) The moneys forming the special purposes fund or any portion thereof may pending application to the purposes referred to in subsection (2) of this section be invested in investments in which trustees are authorised by law to invest or be temporarily employed for the general purposes of the Company to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

87.—(1) The directors may if they think fit in any year appropriate money out of the revenue of the Company as part of the expenditure on revenue account to a fund to be called the “renewal fund” and the amount of that fund shall be limited in accordance with the provisions of section 5 of the Act of 1934.

Renewal
fund.

(2) The aggregate amount contributed to the renewal fund in any year shall not exceed one per centum of the aggregate amount of the paid-up share or stock capital of the Company of any premiums paid in respect thereof and of any sums raised by the Company on mortgage or by the creation and issue of debenture stock and which have not been repaid.

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PART IX.
—cont.

(3) The renewal fund shall be applicable only to meet expenses requisite for the maintenance and renewal of plant and works (other than expenses incurred in the replacement or removal of plant or works) and shall be so applied from time to time for the purpose of equalising so far as may be the annual charge to revenue in respect of such expenses.

PART X.

MISCELLANEOUS.

Remunera-
tion of
secretary.

88. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company.

Register of
shareholders
and share-
holders'
address
book.

89. Notwithstanding anything in the Companies Clauses Consolidation Act 1845 it shall not be obligatory upon the Company—

- (a) to keep separately a register of shareholders and a shareholders' address book but in lieu thereof the Company may if they think fit keep one register only containing such particulars as are required by the said Act to be entered in the register of shareholders and the shareholders' address book respectively; or
- (b) to authenticate by the affixing of their common seal or otherwise the register of shareholders or any register which the Company may keep in lieu thereof under the powers of this section.

Company to
pay interest
on money
deposited
as security
for gas
meter &c.

90. If any person be required by the Company to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security be made by way of deposit the Company shall pay interest at the rate of five per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Closing
of transfer
books.

91. The directors may close any register of transfers for a period not exceeding fourteen days previous to the declaration of any interim or other dividend.

[1 EDW. 8. &
1 GEO. 6.]

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or to the date on which interest on the stock to which the register relates shall be payable and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper circulating within the limits of supply and any transfer made during the time when the transfer book in which the same is to be registered is so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend or to the date on which the interest is payable.

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PART X.
—cont.

92. Where any debenture stock of the Company is registered in the names of more than one person as holders thereof the receipt of any of the registered holders of such debenture stock shall in the event of no notice to the contrary being served upon the Company from the other or others of such registered holders be a sufficient discharge to the Company for any interest payable in respect of such debenture stock the receipt whereof is acknowledged by such receipt.

As to
receipts for
interest on
debenture
stocks
standing in
more than
one name.

93. If any money be payable to a shareholder stockholder or debenture stock holder being a minor or person of unsound mind the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in
case of
persons not
sui juris.

94. Any notice to be served by the Company on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other officer of the Company for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known place of abode or of business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served be after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authenti-
cation and
service of
notices by
Company.

A.D. 1937.

PART X.
—cont.As to
recovery
of sums
due for
fittings &c.

95. If the Company commence proceedings against any consumer for the summary recovery of any sum due for a supply of gas any other sum due or payable to the Company by the same consumer in respect of the sale of any residual product or of the sale or hire of any apparatus or fittings supplied or provided by them for or in connection with the consumption or use of gas or in respect of the provision of materials and work in connection therewith or the fixing setting up repairing altering maintaining or removal thereof may be included in the same summons and may be recovered summarily as a civil debt together with the sum due for the supply of gas provided that the sum so included as aforesaid do not exceed twenty pounds in any one summons.

Recovery
of demands.

96. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the Company whether or not provision be made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand do not exceed the amount recoverable in that court in an action founded on contract or tort.

Several
sums in one
summons.

97. Where the payment of more than one sum by any person is due under the provisions of any Act or Order from time to time relating to the Company any summons or warrant issued for the purposes of that Act or Order in respect of that person may contain in the body thereof or in the schedule thereto all sums payable by him.

Recovery of
penalties &c.

98. Save as otherwise expressly provided by any Act or Order from time to time relating to the Company all offences against any such Act or Order and all penalties forfeitures costs and expenses imposed or recoverable thereunder or under any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner :

Provided that the costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Power to
grant pen-
sions &c.

99.—(1) The directors may grant such gratuities pensions and superannuation allowances or make such other payments as they think fit to any employee

[1 EDW. 8. &
1 GEO. 6.]

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or where in any particular case no adequate provision is in their opinion otherwise made to the widow or family or any dependant of an employee.

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—
PART X.
—cont.

(2) In the event of no superannuation scheme being established under the next ensuing section of this Act the directors may make such payments as they think fit to any superannuation fund otherwise formed for the benefit of the employees.

(3) The directors may enter into and carry into effect agreements with any local authority as defined by the Local Government and other Officers' Superannuation Act 1922 to which that Act applies or with any insurance company or other association or company for securing to any such employee widow family or dependant as aforesaid such gratuities pensions allowances or payments as are by this section authorised to be granted or made.

12 & 13
Geo. 5. c. 59.

(4) The directors may subscribe or make donations to any fund raised in case of national emergency and to infirmaries hospitals convalescent homes and similar institutions and to any charitable objects and to any industrial exhibitions relating to any of the objects of the Company and to the benevolent and sick funds of the employees.

(5) The directors may apply the revenues of the Company for the purposes of this section.

(6) In this section the expression "employee" includes a director appointed under the provisions of section 26 of the Act of 1934 or a managing director.

100.—(1) The Company may establish and carry into effect and from time to time modify alter or rescind a scheme for the provision of superannuation allowances for employees and may by any such scheme provide for the making of contributions by the Company and by the employees to the superannuation fund formed under any such scheme and for the investment of moneys forming part of such fund and the accumulation of interest or dividends on such investments by way of compound interest:

Super-
annuation
scheme.

Provided that no modification alteration or rescission of any such scheme shall without his consent place any person who at the date of such modification alteration or rescission is a contributor to the fund or entitled

A.D. 1937. under such scheme to a superannuation allowance
— in a worse position than he would have been if such
PART X. modification alteration or rescission had not been made.
—cont.

17 & 18

Geo. 5. c. 41.

(2) No superannuation fund established under this section shall come into operation until it shall have been registered under the Superannuation and other Trust Funds (Validation) Act 1927.

(3) The Company may apply their revenues for the purposes of this section.

Exercise of
powers of
Board of
Trade.

101. All things required or authorised under this Act or any enactment incorporated herewith or applied hereby to be done by the Board of Trade may be done by the President or Secretary or Under-Secretary or Assistant Secretary of the Board or any person authorised in that behalf by the President of the Board.

Copy of
Act to be
registered.

102.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register the same and if such copy be not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

19 & 20

Geo. 5. c. 23.

(2) There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1929 on registration of any document other than the memorandum of association or the abstract required to be filed with the registrar by a receiver or manager or the statement required to be sent to the registrar by the liquidator in a winding up in England.

For protec-
tion of
London
Midland and
Scottish
Railway
Company.

103. The following provisions for the protection of the London Midland and Scottish Railway Company (hereinafter referred to as "the railway company") shall unless otherwise agreed between the Company and the railway company be in force and have effect:—

(1) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works of the Company upon across over under

[1 EDW. 8. &
1 GEO. 6.]

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or in any way affecting the railways lands or property belonging to the railway company or used or occupied by them for the purposes of their undertaking or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall (except in cases of emergency) be done under the superintendence if the same be given and to the reasonable satisfaction of the principal engineer of the railway company and (except in cases of repair) according to plans to be submitted to and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Company Provided that if the said engineer shall not express his approval or disapproval of such plans within twenty-one days from the submission thereof he shall be deemed to have approved thereof:

(2) The Company shall restore and make good the roads over any bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all the works matters and things aforesaid shall be constructed executed and done so as not to cause any injury to the railways bridges level crossings approaches viaducts stations works lands or property of the railway company or interruption to the passage or conduct of traffic over such railways or at any station thereon :

(3) If any such injury or interruption as aforesaid shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works not being due to any act or default of the railway company or their agents or employees the Company shall make compensation in respect thereof to the railway company the amount of such compensation unless otherwise agreed upon to be determined by arbitration in manner hereinafter provided :

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PART X.
—cont.

A.D. 1937.

—
PART X.
—cont.

(4) Any dispute or difference which may arise between the railway company and the Company with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall failing agreement be settled by arbitration by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject thereto the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Works
below
high-water
mark not
to be con-
structed
without
consent of
Board of
Trade.

104. The Company shall not under the powers of this Act construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing and then only according to such plan and under such restrictions and regulations as the Board may approve of in writing and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval. If any work be commenced altered extended or completed contrary to the provisions of this section the Board may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable either as a debt due to the Crown or by the Board summarily as a civil debt.

Costs of Act.

105. All the costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the corporation and the Company in equal shares and the proportion payable by the Company may in whole or in part be charged against revenue.

[1 EDW. 8. &
1 GEO. 6.]

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The SCHEDULES referred to in the
foregoing Act.

A.D. 1937.

FIRST SCHEDULE.

THIS AGREEMENT is made the twenty-third day of November one thousand nine hundred and thirty-six between THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF BEAUMARIS in the county of Anglesey (hereinafter called "the Corporation") of the one part and WILLIAM ALBERT SCOTT of Number 50 Cannon Street in the city of London justice of the peace for the county of London and fellow of the Institute of Chartered Accountants in England and Wales (hereinafter called "the Purchaser") of the other part.

WHEREAS under the Beaumaris Gas Order 1922 the Corporation is supplying gas within the borough of Beaumaris in the county of Anglesey :

And whereas the Corporation is willing to sell the gas undertaking as hereinafter defined and the Purchaser is willing to purchase the same at the price and on the terms and conditions hereinafter set forth :

Now it is hereby agreed as follows :—

1. The Corporation shall sell and the Purchaser shall purchase as a going concern the gas undertaking free from all mortgages charges and incumbrances.

For the purpose of this agreement the expression "the gas undertaking" means the gas undertaking of the Corporation as existing immediately before the date of transfer hereinafter mentioned and including the lands and hereditaments described in Part I of the schedule hereto and all plant distributing mains services pipes public lamp standards brackets and fittings machinery stoves cookers apparatus meters fixtures fittings and appliances stores and stock in hand and all floating balances in connection with the gas undertaking including cash in hand and amounts due from debtors and others and all other assets of the gas undertaking but excluding the sums and investments in the sinking funds of the Corporation and excluding all cookers stoves and fittings in dwelling-houses belonging to the Corporation together with the gas business of the Corporation and the rights powers and privileges of the Corporation in connection

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1ST SCH.
—cont.

with the gas undertaking and all property assets and effects whatsoever and wheresoever and whether real or personal including things in action and the benefit and liability of all contracts of sale purchase hire-purchase or hire and of insurance or otherwise relating to the gas undertaking to which the Corporation is entitled or is subject and also all books vouchers and documents exclusively connected with the gas undertaking (but excluding the books and vouchers relating to moneys borrowed by the Corporation) to all of which said books vouchers and documents both the Corporation and the Purchaser shall at all reasonable times have access so far as shall be reasonably necessary.

2. The Corporation shall also convey to the Purchaser in fee simple free of incumbrances the lands described in Part II of the schedule hereto.

3. The consideration to be paid by the Purchaser shall be the payment in cash to the Corporation of the following sums :—

(a) in respect of the gas undertaking the sum of £6,000 in cash ;

(b) in respect of the lands described in Part II of the schedule hereto the sum of £32 in cash.

4. The Corporation shall not at any time make default in the repayment of any moneys borrowed by them and outstanding at the date of transfer and which by virtue of the Local Government Act 1933 are charged indifferently on all the revenues of the Corporation to the persons from whom such moneys were borrowed and shall at all times indemnify and save harmless the Purchaser and the Company to be formed as hereinafter mentioned against the same.

5. The balance of the consideration money received by the Corporation in respect of the sale to the Purchaser of the gas undertaking and of the lands described in Part II of the schedule hereto (after payment thereof of the proportion payable by the Corporation of the costs referred to in clause 14 hereof) shall be applied in such manner as the Minister of Health may approve towards the discharge of any debt of the Corporation or otherwise for any purpose for which capital money may properly be applied.

6.—(1) The Purchaser shall be entitled as from the 1st day of January 1937 to all gas rentals rent profits and other moneys to become due to the Corporation on or after that date in respect of the gas undertaking as existing at that date but not including any moneys which on the said date are due (and have not been transferred) to the gas undertaking from the general rate fund in respect of deficiencies.

(2) The Purchaser shall pay satisfy and discharge all debts and liabilities payable by the Corporation on revenue account and incurred on or after the 1st day of January 1937 in respect of the gas undertaking as existing on that date including all interest

accruing after the said date until the actual date of payment of the consideration money in respect of the loans raised by the Corporation for the purposes of the gas undertaking outstanding at the 1st day of January 1937 or from time to time up to the date of actual payment of the consideration money in respect of the transfer to the Purchaser of the gas undertaking and for the purpose of this clause all such interest shall be deemed to accrue from day to day.

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1ST SCH.
—cont.

7. The Corporation shall make out a good title to the lands described in Parts I and II of the schedule hereto and if they shall fail to make such title in respect of any part thereof the sums payable by the Purchaser to the Corporation shall be reduced by an amount equivalent to the sum by which the value of such property shall be diminished by reason of such default of title such amount to be referred to arbitration in case of difference as hereinafter provided.

8. From and after the date of this agreement and until the date of transfer the Corporation shall maintain and keep the gas works plant mains services pipes machinery public lamp standards brackets and fittings stoves cookers apparatus meters fixtures fittings and appliances stores and stock in hand in proper and efficient condition and repair and maintain and carry on the gas undertaking in the ordinary course of business as agents for and at the expense and risk of the Purchaser and in particular shall use its best endeavours to collect get in and obtain before the date of transfer all debts moneys and allowances due to the Corporation and payable to the Purchaser under clause 6 (1) hereof in respect of the gas undertaking but as from the date of this agreement and during the continuance thereof until the date of transfer the Corporation shall not without the consent of the Purchaser—

- (a) alter wages or salaries except in accordance with regional council awards;
- (b) alter the price of gas;
- (c) enter into any contracts extending beyond the 31st day of December 1936; or
- (d) incur any expenditure on capital account Provided that if and when so requested by the Purchaser the Corporation shall on behalf of the Purchaser make any necessary capital expenditure on the provision of new mains or new services meters cookers and other appliances required by consumers in the ordinary course of business The amount of such expenditure (so far as it may have been actually paid by the Corporation whether before or after the date of transfer otherwise than on revenue account) together with the amount of all interest payable by the Corporation up to the date of such repayment on any loans raised by them exclusively for the

A.D. 1937.

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1ST SCH.
—cont.

purposes of such expenditure shall be repaid to the Corporation by the Purchaser at the same time as the payment of the consideration for the transfer of the gas undertaking if the necessary statutory authority be obtained and if such authority be not obtained shall be borne by the Corporation and by the Purchaser in such proportions as may be agreed between them or as failing agreement shall be determined by arbitration as hereinafter provided.

9. The gas undertaking shall be transferred to the Purchaser or to a company to be incorporated for the purpose on or as from the 1st day of July 1937 or such other date as may be prescribed in that behalf by Parliament (which date is in this agreement referred to as "the date of transfer") and the consideration for such transfer shall be satisfied and paid as soon as practicable after the date of transfer but not in any event later than one month after that date.

10. The Corporation shall as soon as practicable after the date of transfer or the date on which the necessary statutory authority for the transfer shall have been obtained (whichever shall be the later) give to the Purchaser or to the company to be incorporated as aforesaid possession of the gas undertaking and of the lands described in Part II of the schedule hereto and of all books documents deeds and other instruments belonging to the Corporation relating exclusively to the gas undertaking.

11. (a) The Purchaser shall not later than the 27th day of November instant deposit a Bill in Parliament for and use his best endeavours to obtain the necessary statutory authority for giving effect to this agreement and for incorporating a company for the purpose and the Corporation shall at the request of the Purchaser aid and assist the Purchaser in obtaining such statutory authority so far as it conforms to the terms of this agreement.

(b) The purchaser shall be at liberty to include in such Bill such clauses and provisions relating to the intended company and to the gas undertaking as he may think fit and as shall not be inconsistent with any of the provisions of this agreement.

12. The Corporation shall enter into a contract with the Purchaser or with the intended company to take gas for the entire lighting of the public streets within the borough where gas mains and services are available for a period of not less than five years from the date of transfer and on terms to be agreed and signed on behalf of the Corporation and the Purchaser or the intended company.

13. The Purchaser or the intended company shall undertake as agents for the Corporation the removal of house refuse from dwelling-houses and buildings in the borough of Beaumaris and the destruction thereof in the refuse destructor which is now

[1 EDW. 8. &
1 GEO. 6.]

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situate on part of the lands described in Part I of the schedule hereto for such period and on such terms as shall be agreed between the Corporation and the Purchaser or the intended company.

14. The proper costs incurred in connection with the preparation application for and obtaining of the intended Act shall be borne and paid by the Corporation and the Purchaser or the intended company in equal shares.

15. This agreement is subject to the necessary statutory authority as aforesaid being obtained and to such alterations (if any) as Parliament may think fit to make herein or in the Bill for such authority but in the event of any material alteration being so made it shall be in the option of either party by notice in writing given to the other of them as soon as reasonably practicable after the making of such material alteration to determine this agreement and in such event this agreement shall except as regards clause 14 and the payment provided for by clause 8 (1) (*d*) hereof become void and of no effect and in such event or in the event of the necessary statutory authority not being obtained all moneys received or paid by the Purchaser under the provisions of clause 6 hereof shall be refunded to or by the Corporation and the Purchaser as the case may be. Provided that the Corporation shall not determine this agreement by reason only of any alteration in or the deletion of clause 13 hereof by Parliament.

16. If any question shall arise between the parties with respect to this agreement or anything herein contained the same shall be referred to and determined by a single arbitrator to be agreed upon between the parties or in default of such agreement to be appointed on the request of either party after 21 days' notice in writing to the other of them by the President for the time being of the Board of Trade and subject thereto the provisions of the Arbitration Acts 1889 to 1934 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such reference and determination.

In witness whereof the Corporation have caused their common seal to be hereunto affixed and the said William Albert Scott has hereunto set his hand and seal the day and year first above written.

The SCHEDULE hereinbefore referred to.

PART I.

Lands in the parish and borough of Beaumaris containing 2 roods 2 perches or thereabouts forming part of the enclosure numbered 71 on the Ordnance map (scale 1/2500 Anglesey sheet XX.1 edition of 1914) comprising the site of the existing gasworks together with the garden adjoining the said gasworks on

A.D. 1937.

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1ST SCH.
—cont.

A.D. 1937. the eastern side thereof and a strip of land with stream flowing through the same extending along the northern side of the said gasworks and of the said garden the said lands being bounded on the north by the roadway leading from Beaumaris to the entrance to the said gasworks on the west in part by the said roadway and in part by a continuation of the said stream on the south in part by other lands forming part of the said enclosure numbered 71 and in part by land forming part of enclosure numbered 72 on the said Ordnance map and on the east by lands also forming part of the said enclosure numbered 72.

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1ST SCH.
—cont.

PART II.

Lands in the said parish and borough of Beaumaris containing 1 rood 2 perches or thereabouts forming part of the enclosure numbered 72 on the said Ordnance map bounded on the north and east by the said roadway leading from Beaumaris to the entrance to the said gasworks on the west by the lands referred to in Part I of this schedule and on the south by lands also forming part of the said enclosure numbered 72.

The common seal of the MAYOR
ALDERMEN AND BURGESSES
of the BOROUGH OF BEAU-
MARIS is hereunto affixed in
the presence of—

C. A. SLOANE
Mayor.

L.S.

J. HUGH THOMAS Town clerk.

Signed sealed and delivered by
the said WILLIAM ALBERT
SCOTT in the presence of—

W. A. SCOTT.

L.S.

R. GIRDLESTONE COOPER
5 Victoria Street Westminster
Solicitor and parliamentary agent.

SECOND SCHEDULE.

PART I.

LAND FORMING PART OF THE BEAUMARIS UNDERTAKING.

A piece of land in the borough of Beaumaris containing 2 roods 2 perches or thereabouts forming part of the enclosure numbered 71 on the Ordnance map (scale 1/2500 Anglesey sheet XX.1 edition of 1914) comprising the site of the existing

[1 EDW. 8. &
1 GEO. 6.]

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gasworks together with the garden adjoining the said gasworks on the eastern side thereof and a strip of land with stream flowing through the same extending along the northern side of the said gasworks and of the said garden the said lands being bounded on the north by the roadway leading from Beaumaris to the entrance to the said gasworks on the west in part by the said roadway and in part by a continuation of the said stream on the south in part by other lands forming part of the said enclosure numbered 71 and in part by land forming part of enclosure numbered 72 on the said Ordnance map and on the east by lands also forming part of the said enclosure numbered 72.

A.D. 1937.

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2ND SCH.
—cont.

PART II.

LAND FORMING THE SITE OF THE EXISTING GASWORKS OF THE
AMLWCH GAS COMPANY LIMITED.

A piece of land in the urban district of Amlwch in the county of Anglesey containing 1 rood 29 perches or thereabouts belonging to and in the occupation of the Amlwch Gas Company Limited and upon which their existing works are situate bounded on the north by the graveyard lying to the east of the vicarage of St. Elaeth's Church on the north-east by the enclosure numbered 498 on the 1/2500 Ordnance map (Anglesey sheet III.6 edition of 1924) on the east by land belonging or reputed to belong to Owen Roberts and David Owen on the south-east by a roadway known as Riverside Lane and on the south-west and west by School Lane.

PART III.

LAND TO BE CONVEYED BY THE CORPORATION TO THE COMPANY
IN ADDITION TO THE BEAUMARIS UNDERTAKING.

A piece of land in the said borough of Beaumaris containing 1 rood 2 perches or thereabouts forming part of the enclosure numbered 72 on the Ordnance map referred to in Part I of this schedule bounded on the north and east by the said roadway leading from Beaumaris to the entrance to the said gasworks on the west by the piece of land referred to in Part I of this schedule and on the south by lands also forming part of the said enclosure numbered 72.

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